

Ladakh Budhists Succession to Property Act, 2000

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Ladakh Budhists Succession to Property Act, 2000

Act 28 of 2000

Published on 14 June 2000

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Ladakh Budhists Succession to Property Act, 2000

(Act No. 28 of 2000)

[Dated 14th June, 2000]

An Act to define and amend in certain respects the law relating to succession to property of the Budhists of Ladakh.

Preamble. - Whereas it is expedient to define and amend in certain respects the law relating to succession to property of the Budhists of Ladakh; It is hereby enacted as follows :-

1.

Short Title, Extent and applicatio.

- (i) This Act may be called as the Ladakh Budhists Succession to Property Act, 2000.

(ii)

It shall extend to the whole of Jammu and Kashmir.

2.

Definitions.

- In this Act, unless there is anything repugnant in the subject or context,-

(a)

"Budhists" means a person who professes the Budhists faith or religion;

(b)

"Ladakh" means the District of Ladakh.

3.

Right to all sons to succeed in equal Shares.

- On the death of a Budhists his property, where he leaves more than one son, shall notwithstanding any law or custom to the contrary but subject to any valid disposition there of which he may have made during his life time, be inherited by all his sons in equal shares:

Provided that sons, sons of pre-deceased sons, and sons of pre-deceased sons of predeceased sons , shall inherit per strips, that is to say, the sons of pre-deceased son shall take the share which would have taken by him and likewise the grandsons of a pre-deceased son shall take the share which their father would have taken.

4.

Saving.

- The Provisions of this Act shall not affect any right of succession accrued or any title of property acquired before the commencement of this Act.

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